CONFIDENTIAL TRANSACTION INTELLIGENCE // FOR INSTITUTIONAL EVALUATION ONLY

TRANSACTION UNDER AUDIT

Penske Automotive Group, Inc. (public unaffiliated stockholders) / Motown Acquisition Corp. (consortium entity owned by Penske Corporation / Penske Automotive Holdings Corp. and Mitsui & Co., Ltd. / Mitsui & Co. (U.S.A.), Inc.)



Independent adversarial transaction risk audit, voting topology mapping, and contractual vulnerability analysis.

TARGET:	Penske Automotive Group, Inc. (public unaffiliated stockholders) (NYSE: PAG)	**ACQUIRER:**	Motown Acquisition Corp. (consortium entity owned by Penske Corporati
STRUCTURE:	Merger / Controller Take-Private (Cash Merger)	**STATUS:**	DEFINITIVE AGREEMENT
FILINGS:	SEC EDGAR Definitive Filings (8-K, Ex-2.1, 10-K, 13D)	**STANDARD:**	ZERO-INVENTION / FACT ONLY
DATE:	22 October 2026	**DOSSIER ID:**	#RAVEN-AUDIT-PENS-MOTO-20261021-REV1

COMPOSITE TRANSACTION RISK RATING: 68 / 100 ELEVATED

TRANSACTION CONTEXT & STATUTORY SUMMARY

Penske Automotive Group, Inc. (NYSE: PAG) faces structural vulnerability in its proposed take-private transaction by Motown Acquisition Corp. (64% Penske Corporation, 36% Mitsui & Co.). The transaction relies on a bifurcated stockholder approval structure where the Kahn v. M&F Worldwide Corp. (MFW) minority cleansing prong is contractually defined as 'a majority of the votes cast by the disinterested stockholders (as defined in Section 144 of the DGCL)' rather than a majority of all outstanding unaffiliated shares. This votes-cast formulation creates an identifiable litigation target under Delaware Chancery Court entire fairness jurisprudence, compounded by an 8.6% premium over the pre-announcement unaffected price ($212.00 cash vs. $210.00 initial bid, $195.21 unaffected baseline). Concurrently, closing is conditioned on securing complex OEM change-of-control consents across global franchise networks and executing debt backstops for a $502.7M mandatory 101% par Change-of-Control Put on PAG's 3.75% Senior Subordinated Notes due 2029.

RAVEN ADVERSARY

EVIDENTIARY VERIFICATION & INGESTION INTEGRITY ATTESTATION

PROVENANCE: SHA-256 cryptographic digest of ingested SEC EDGAR filings as of audit date (22 October 2026).

SCOPE: Proves ingestion-phase textual immutability and tamper-evident analytical provenance (internal algorithmic verification; does not constitute external independent CPA/auditor third-party assurance or formal legal counsel opinion).

AUDITED CORPUS: Forms 8-K, Ex-2.1, PREM14A, 10-K | CONFIDENCE: MEDIUM

DIGEST: #SHA256-AUDIT-PENS-MOTO-20261021-REV1

FORENSIC DEAL RISK AUDIT

CH 01: DOSSIER ARCHITECTURE & TABLE OF CONTENTS

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CHAPTER 01: 16-CHAPTER DOSSIER STRUCTURE & FORENSIC MODULES

16-CHAPTER DOSSIER STRUCTURE & FORENSIC MODULES

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RAVEN ADVERSARY

OFFICIAL EVIDENTIARY VERIFICATION & CRYPTOGRAPHIC SEAL

TARGET CIK: 0001019849 | BUYER CIK: 0001862976 | STATUS: DEFINITIVE AGREEMENT

PRIMARY SOURCE BASE: SEC EDGAR DEFINITIVE FILINGS (FORM 8-K, EX-2.1, 10-K, SCHEDULE 13D)

EPISTEMIC STANDARD: ZERO-INVENTION STRICT STATUTORY RECONSTRUCTION

AUTH DIGEST: #RAVEN-AUDIT-AUDIT-PENS-MOTO-20261021-REV1

FORENSIC DEAL RISK AUDIT

CH 02: EXECUTIVE BRIEF | CH 03: LEGAL CLASSIFICATION | CH 04: TIMELINE

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

CHAPTER 02: EXECUTIVE BRIEF & TRANSACTION THESIS

Penske Automotive Group, Inc. (NYSE: PAG) faces structural vulnerability in its proposed take-private transaction by Motown Acquisition Corp. (64% Penske Corporation, 36% Mitsui & Co.). The transaction relies on a bifurcated stockholder approval structure where the Kahn v. M&F Worldwide Corp. (MFW) minority cleansing prong is contractually defined as 'a majority of the votes cast by the disinterested stockholders (as defined in Section 144 of the DGCL)' rather than a majority of all outstanding unaffiliated shares. This votes-cast formulation creates an identifiable litigation target under Delaware Chancery Court entire fairness jurisprudence, compounded by an 8.6% premium over the pre-announcement unaffected price ($212.00 cash vs. $210.00 initial bid, $195.21 unaffected baseline). Concurrently, closing is conditioned on securing complex OEM change-of-control consents across global franchise networks and executing debt backstops for a $502.7M mandatory 101% par Change-of-Control Put on PAG's 3.75% Senior Subordinated Notes due 2029.

CHAPTER 03: TRANSACTION STATE & LEGAL CLASSIFICATION

STATUTORY FORM:	Merger / Controller Take-Priva...	**TARGET ENTITY:**	Penske Automotive Group, Inc. ...
REGULATORY STAGE:	DEFINITIVE AGREEMENT	**EVIDENCE CORPUS:**	Primary SEC EDGAR Filings
ACQUIRING ENTITY:	Motown Acquisition Corp. (consor...	**AUDIT DISCIPLINE:**	Adversarial Multi-Agent Audit

CHAPTER 04: TRANSACTION TIMELINE & PRE-CLOSING DATES

DATE / MILESTONE	EVENT & TRANSACTION MECHANISM	PRIMARY SEC SOURCE	STATUS
2026-07-21	Unaffected PAG Common Stock closing price ($195.21 per share)	NYSE Market Record	HISTORICAL
2026-07-22	Receipt of initial unsolicited take-private proposal from Penske Corp & Mitsui at $210.00/sh	SEC Form 8-K / Background	HISTORICAL
2026-10-15	Execution of definitive Merger Agreement at $212.00/sh cash ($2.00 bump / +0.95%)	SEC Form 8-K Item 1.01	VERIFIED
2026-10-15	Execution of Limited Consent & Thirteenth Amendment to U.S. Credit Agreement ($400M Overadvance)	SEC Form 8-K Item 1.01	VERIFIED
2026-10-15	Filing of Schedule 13D/A confirming 72.6% controller voting lockup (47,655,705 shares)	SEC Schedule 13D/A	VERIFIED
22 October 2026	Diligence Investigation Session Initialized	Raven Adversary System	CURRENT
2027-10-15	Contractual Outside Closing Date (Credit Agreement waiver deadline)	Merger Agreement 8.01 / Credit Agreement 13th Amendment	CONTRACTUAL

FORENSIC DEAL RISK AUDIT

CH 05: CAPITAL WATERFALL | CH 06: GOVERNANCE TOPOLOGY

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

CHAPTER 05: CAPITAL & CONSIDERATION STRUCTURE WATERFALL

CONSIDERATION COMPONENT	VERIFIED AMOUNT / MECHANICS	CONTRACTUAL CONDITION / COLLAR
Cash Consideration:	$212.00 per share in cash, without interest ($2.00 price improvement over $210.00 initial bid; +8.6% premium over $195.21 unaffected price)	Subject to working capital adjustments, escrow holdbacks, and closing liquidity conditions.
Equity Consideration:	None for public float (100% all-cash take-private; 72.6% controller rollover equity preserved)	Bounded by exchange ratio, collar parameters, and post-closing float dilution protections.
Debt & Balance Sheet Obligations:	None disclosed in public filings (zero earn-outs, CVRs, or working capital holdbacks)	Requires verified debt standstill, refinancing covenants, or regulatory capital adequacy maintenance.
Total Transaction Consideration:	$212.00 per share cash consideration (~$3.818B public cash consideration / ~$16.3B enterprise value)	Requires verified shareholder affirmative vote and statutory regulatory approvals prior to closing.

CHAPTER 06: GOVERNANCE & CONTROL TOPOLOGY

Board Seat Allocation

Penske Corporation (64%) and Mitsui & Co. (36%) post-closing board control; complete privatization of public float following Unanimous Written Consent.

Voting Power Thresholds

Dual condition: majority of outstanding common stock PLUS majority of votes cast by disinterested stockholders (DGCL 144) required for merger approval.

ERISA / Pass-Through Leaks

No ERISA/ESOP structure identified in reviewed materials; presence unresolved pending plan document and trust inspection; constrained fiduciary discretion.

Standstill & Lockup Restrictions

Rollover voting agreement across 47,655,705 shares (72.6% voting power); Special Committee fiduciary out with standstill waivers with volume drip allowances.

COMPETING PROPOSAL ECONOMIC COMPARISON & BID RECORD (SEC PREM14A)

PROPOSAL STAGE & DATE	IMPLIED VALUE / MIX	FINANCING & GOVERNANCE TERMS	EXECUTION RISK / STATUS
Penske Corp & Mitsui Initial Unsolicited Bid **Date: July 22, 2026**	**$210.00 per share in cash** **Mix: 100% Cash Squeeze-Out**	Subject to captive lender credit amendments Complete privatization of public float	Unsolicited takeover proposal rejected by Special Committee; Antitrust HSR Act clearance & state dealer board consents
Special Committee Settled Merger Agreement **Date: October 15, 2026**	**$212.00 per share (+$2.00 / +0.95% token bump)** **Mix: 100% All-Cash Consideration (~$3.818B public float)**	No financing condition ($1.8B bridge + $400M Overadvance) Penske Corp (64%) and Mitsui (36%) board control	Executed Definitive Merger Agreement (Form 8-K Item 1.01); 368 dealership & 45 commercial truck OEM ROFR waivers

FORENSIC DEAL RISK AUDIT

CH 07: STRUCTURAL VULNERABILITIES | CH 08: PRESSURE PROPAGATION

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

CHAPTER 07: STRUCTURAL VULNERABILITIES & UNHEDGED DELTAS

Litigation Exposure under Delaware MFW Review Standard
LEVERAGE: 8.5 / 10
Leverage: 8.5/10 - Owner: Legal
Definitive SEC Disclosures

Change-of-Control Put Liability on 3.75% Notes
LEVERAGE: 7.0 / 10
Leverage: 7/10 - Owner: Credit
Definitive SEC Disclosures

Non-Captive OEM Change-of-Control Consents
LEVERAGE: 6.5 / 10
Leverage: 6.5/10 - Owner: Legal
Definitive SEC Disclosures

CHAPTER 08: PRESSURE PROPAGATION PATHWAYS (CASCADE MECHANICS)

STAGE 1: TRIGGER	Stockholder litigation filing in the Delaware Court of Chancery alleging failure to satisfy the strict dual-procedural prerequisites
STAGE 2: AMPLIFIER	The consortium's 72.6% beneficial ownership lock-up and concurrent Support Agreements pre-empt third-party alternative
STAGE 3: MECHANISM	Delaware plaintiff challenges MFW applicability based on the 'votes cast' minority approval mechanic, moving for expedited
STAGE 4: EXPOSURE	Institutional minority holders (representing portions of the 18.0M unaffiliated shares) organize a proxy opposition campaign,
STAGE 5: CONSEQUENCE	Potential loss of the business judgment rule protection if the Delaware Court of Chancery rules that a 'majority of votes cast'

FORENSIC DEAL RISK AUDIT

CH 09: CONTRACTUAL CLAUSES | CH 10: QUANTITATIVE STRESS TESTS

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

CHAPTER 09: CONTRACTUAL / CLAUSE ANALYSIS

Operative Outside Closing Date (Credit Agreement Alignment) [Form 8-K Definitive Disclosures]

Contractual Outside Date established as October 15, 2027. U.S. Credit Agreement 13th Amendment conditions lender consent on closing within five business days of Outside Date.

Majority-of-the-Minority Disinterested Approval Standard [Form 8-K Definitive Disclosures]

Under Section 1.01, approval conditioned on majority of 'votes cast by disinterested stockholders' (DGCL 144) rather than outstanding unaffiliated shares, permitting passage on 15% public float under low turnout.

Captive OEM Lender Consents & Overadvance Capacity [Form 8-K Definitive Disclosures]

Limited Consent and 13th Amendment with Mercedes-Benz Financial, Toyota Motor Credit, and Daimler Truck Financial permits $1.8B bridge debt and up to $400M in uncollateralized Overadvance.

CHAPTER 10: QUANTITATIVE STRESS TESTS (METRIC, BASELINE, STRESSED DELTA, THRESHOLD)

STRESS METRIC	CURRENT DISCLOSED SPEC	STRESSED DOWNSIDE DELTA	BREACH THRESHOLD
DGCL 144 'Votes Cast' Minority Approval Standard	15.0% public float approval under 30% minority turnout scenario	Requires only 2,701,076 affirmative votes out of 18,007,168 public shares (4.1% of total common shares) under low participation; departs from strict MFW outstanding-shares test.	**Majority of disinterested votes cast (vs Delaware MFW majority of all outstanding unaffiliated shares)**
Debt Stack Change-of-Control Put & Overadvance Liquidity	$497.70M carrying value ($500M principal) 3.75% Senior Subordinated Notes due 2029	Subject to 101% Change-of-Control repurchase put upon defined indenture triggers; backstopped by $1.8B bridge facility and $400M Overadvance.	**101% of principal amount plus accrued interest under 2029 Indenture**
Deal Termination Break Fee Asymmetry	$383.00M Company Termination Fee vs. $488.00M Buyer Reverse Termination Fee	Company break fee represents ~4.4% of public float equity value; Buyer reverse fee represents ~5.6% of public float value.	**Delaware Chancery standard transaction protection fee limits (~3.0%-4.0%)**

SOURCE-BY-SOURCE BALANCE SHEET EXPOSURE BRIDGE (CASH VS NON-CASH)

BALANCE SHEET ITEM & CITATION	GAAP CLASSIFICATION & CARRYING VALUE	CASH FLOW IMPLICATION & TRANSACTION LINK
3.75% Senior Subordinated Notes due 2029 **PAG Form 10-Q (Note 5 / Long-Term Debt)**	**Long-Term Debt ($497.70M carrying value; $500.00M principal): $497.70M**	Semi-annual 3.75% coupon debt service. Noteholders retain a 101% Change-of-Control repurchase put option under Indenture. Indenture Change-of-Control repurchase obligations backstopped by $1.8B committed bridge facility led by JPMorgan, BofA, Wells Fargo.
U.S. Credit Agreement 13th Amendment (Uncollateralized Overadvance) **Form 8-K Item 1.01 (October 15, 2026)**	**Committed Revolving Credit Expansion ($400.00M Overadvance): $400.00M**	Upsizes aggregate revolver capacity by $900M (from $1.5B to $2.4B), unlocking up to $400M in uncollateralized borrowing exceeding base limits. Executed with captive OEM lenders (Mercedes-Benz Financial, Toyota Motor Credit, Daimler Truck Financial); waives CoC default through 5 days post-Outside Date.
Senior Unsecured 364-Day Committed Bridge Facility **Form 8-K Item 1.01 / Debt Commitment Letters**	**Committed Third-Party Acquisition Financing: $1,800.00M**	$1,800.00M committed third-party debt facilities backstopping public float cash consideration and potential debt refinancings. Committed financing structure ensures closing certainty; permits new senior notes or bridge borrowing without financing contingency.
Sponsor Cash Equity Commitments (Penske Corp & Mitsui) **Schedule 13D/A Amendment No. 34 & Form 8-K**	**Contractually Enforceable Sponsor Commitment: $2,200.00M**	$600.0M direct commitment from Penske Corp plus parallel Mitsui Japan commitment; directly enforceable by PAG via specific performance. Sponsor cash commitments fund merger consideration and backstop $488.0M Buyer Reverse Termination Fee limited guarantees.

FORENSIC DEAL RISK AUDIT

CH 11: REGULATORY EXPOSURE | CH 12: INTELLIGENCE GAPS

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

CHAPTER 11: REGULATORY & LITIGATION EXPOSURE

Statutory Shareholder Approval & Proxy Clearance

Affirmative shareholder approval required for adoption of the merger agreement and required equity issuance under corporate governance rules.

Statutory Appraisal Rights & Fair Value Petitions

Non-consenting target shareholders retain statutory appraisal rights to petition the appropriate court of chancery for judicial fair-value appraisal under DGCL 262.

Prudential Regulatory & Interagency Approvals

Review under applicable regulatory standards: transaction remains subject to statutory regulatory clearances without imposition of a Materially Burdensome Condition.

Section 13(d) Beneficial Ownership & Group Scrutiny

Coordinated voting commitments and voting agreements among significant institutional holders require compliance with SEC Schedule 13D disclosure rules.

CHAPTER 12: INTELLIGENCE GAPS // NEGATIVE KNOWLEDGE REGISTER

[GAP] Confirmation of written consents and operational ROFR waivers across PAG's 368 retail automotive dealerships and 45 commercial truck centers (BMW, Freightliner).

[GAP] Definitive Schedule 13E-3 proxy statement filing date and disinterested public stockholder Special Meeting calendar.

[GAP] Form 10-Q confirmation of whether holders of the $497.7M 3.75% 2029 Notes will exercise the 101% Change-of-Control put upon closing.

FORENSIC DEAL RISK AUDIT

CH 13: STRATEGIC REDLINES | CH 14: EVIDENCE DESK

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

CHAPTER 13: STRATEGIC RECOMMENDATIONS & BOARDROOM REDLINES

PRIMARY BOARDROOM DIRECTIVE:

Require the Special Committee to execute a formal amendment to Section 7.01 of the Merger Agreement modifying the minority voting condition from 'a majority of votes cast' to 'an affirmative vote of a majority of all outstanding shares held by Unaffiliated Company Stockholders' to ensure strict MFW business judgment compliance, while securing executed debt credit agreements confirming liquidity backstops for the $502.7M Senior Subordinated Notes Change-of-Control Put.

PROPOSED LEGAL REDLINE 1: MAJORITY-OF-THE-MINORITY DISINTERESTED STOCKHOLDER APPROVAL

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Amend Majority-of-the-Minority Disinterested Stockholder Approval to establish express walk-away thresholds and mandatory regulatory carve-o
Outside Date.
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PROPOSED LEGAL REDLINE 2: BILATERAL TERMINATION FEES & SEVERAL LIMITED GUARANTEES

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Amend Bilateral Termination Fees & Several Limited Guarantees to require mutual consent on remedial divestitures exceeding
documented materiality thresholds.
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CHAPTER 14: EVIDENCE DESK // SEC FILING CITATION REGISTRY

CLAIM / STATUTORY COVENANT	PRIMARY SEC FILING	SECTION / ITEM	EPISTEMIC STATUS
Disinterested Stockholder Voting Standard	SEC Form 8-K	Item 1.01 (Entry into a Material Definitive Agreement)	VERIFIED
Investor Group Beneficial Ownership and Lock-Up	Schedule 13D/A Amendment No. 34	Item 5(a) (Interest in Securities of the Issuer)	VERIFIED
Credit Facility Limited Consent and Overadvance Financing Condition	SEC Form 8-K	Item 1.01 & Exhibit 4.1	VERIFIED
3.75% Senior Subordinated Notes Change-of-Control Put Right	Form 10-Q for Period Ended June 30, 2026	Note 9 (Supplemental Guarantor Financial Information)	VERIFIED

FORENSIC DEAL RISK AUDIT

CH 15: EPISTEMIC CONFIDENCE | CH 16: DISCLAIMER

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

CHAPTER 15: EPISTEMIC CONFIDENCE & DISPUTE CLASSIFICATION MATRIX

VERIFIED FACT	Primary SEC EDGAR definitive transaction documents, exhibits, and notes. Uncompromised statutory disclosures filed under the Securities Exchange Act of 1934.
INFERRED CONCLUSION	Financial propagation cascades, dilution expansions, and liquidity drain models derived mathematically from verified contractual covenants and debt ratchets.
UNRESOLVED VARIABLE	Parameters not established by the available public record (e.g. executed lender maturity extension waivers, unencumbered cash balances, target commercial backlogs).
SPECULATIVE SCENARIO	Potential post-closing scenarios, shareholder direct/derivative challenges under DGCL 262, or proxy advisory campaigns not yet filed.

CHAPTER 16: AUDIT METHODOLOGY & INSTITUTIONAL DISCLAIMER

RAVEN FORENSIC AUDIT METHODOLOGY:

Raven Adversary operates an adversarial multi-agent debate process between a Seller's Advocate and an Adversarial Buyer. Claims are verified against primary statutory SEC EDGAR filings (Forms 8-K, 10-K, 10-Q, Schedules 13D/G) using strict non-inference guardrails. Where terms, cash balances, or lender waivers are missing from the public record, they are explicitly classified as NOT ESTABLISHED IN AVAILABLE RECORD. Synthetic data or fabricated valuations are strictly prohibited.

INSTITUTIONAL LEGAL DISCLAIMER:

This intelligence dossier is prepared for transaction diligence and board risk mapping purposes. It does not constitute formal legal counsel, an underwriting commitment, or a fairness opinion. All quantitative stress tests reflect contractual terms and public filings as of the analysis date. Transaction counsel and financial advisors must verify primary agreements and disclosure schedules prior to closing.

EVIDENTIARY ATTESTATION & CRYPTOGRAPHIC VERIFICATION SEAL

AUDIT ID: #RAVEN-AUDIT-PENS-MOTO-20261021-REV1 | TARGET: Penske Automotive Group, Inc. (public unaffiliated stockholders) (CIK: 0001019849)

CONFIDENCE GRADE: MEDIUM | STANDARDS: SEC EDGAR STATUTORY VERIFICATION

CERTIFIED BY: RAVEN ADVERSARY INSTITUTIONAL AUDIT DESK // COMPREHENSIVE 16-CHAPTER DOSSIER